

TERMS AND CONDITIONS OF SALE OF GOODS - NYLON TYRE CORD FABRICS (NTCF)

I. GENERAL

1. The Contract shall be from principal to principal.
2. Any variation or supplements to these articles and all verbal arrangement shall only be binding upon seller if confirmed in writing by seller.
3. Orders shall only be binding if and when confirmed in writing by seller.
4. It is expressly agreed by the Buyers that they shall not resale the goods covered under this invoice unless otherwise agreed to by the seller in writing.

II. DELIVERY

1. Delivery shall be deemed to have taken place as per the agreement entered with the buyer or as soon as the goods leave Seller's factory, as the case may be.
2. In case of ex-factory, the date of the Railway receipt or the receipt obtained from any other transport agency with respect to the consignment shall be deemed to be the date of delivery or in other cases the deemed date of delivery shall be as per that agreement.
3. In case of ex-factory, the seller's responsibility ceases immediately on deemed date of delivery and goods dispatched by road transport and/ or goods trains entirely at the buyer's risk and the sellers will not be liable for loss of goods in transit unless otherwise specified.
4. If desired by the Buyer, the goods shall be insured against transportation risk and premium shall be charged extra to the Buyer.
5. Acts of God, lack of raw material, strikes, unforeseen operating or shipping difficulties or any other obstructions beyond the control of Seller shall release Seller (for the duration of such disturbances and their consequences) from the obligation to deliver by the agreed date. If such date is exceeded by more than two months, then Buyer and/or Seller shall be entitled to cancel the contract to the extent of goods not then delivered.
6. In case the economy in the country of Buyer is seriously affected by war, civil war or similar events, Seller shall have the right to cancel the contract to the extent to the extent of goods not then delivered.
7. Any release of the goods using yarn supports or other packing material provided by Seller shall be subject to the prior written consent of Seller. It is expressly agreed that Buyer has purchased the goods under this invoice for manufacturing products by Buyer.